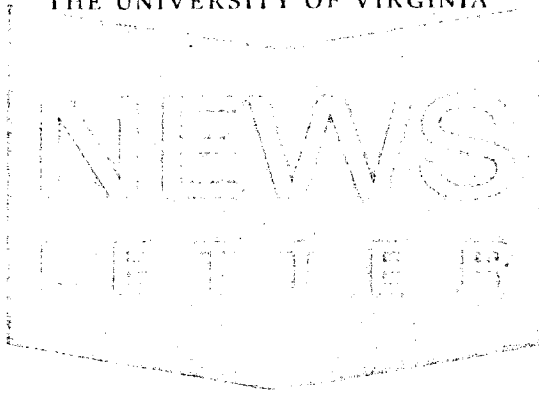




CITY AND COUNTY AT-LARGE ELECTIONS AND THE PROBLEM OF MINORITY REPRESENTATION

By Timothy G. O'Rourke

Mr. O'Rourke is a research associate on the staff of the Institute of Government.

On March 29, 1978, the United States Court of Appeals for the Fifth Circuit affirmed a district court's finding that at-large elections for city commissioners in Mobile, Alabama, violated Fourteenth and Fifteenth amendment guarantees of equal protection and the right to vote. In this remarkable case, now up for review by the United States Supreme Court, the court of appeals sustained the lower court's order that Mobile adopt a mayor-council plan with councillors elected from wards to replace the existing commission form of government. In other actions, federal courts have declared unconstitutional at-large elections for city or county governing boards in such localities as Albany, Georgia; Dallas, Texas; and LeFlore County, Mississippi. Legal challenges to the constitutionality of at-large elections in other cities and counties are pending in federal courts.

Apart from suits directly attacking the constitutionality of local at-large elections, legal actions by the United States Department of Justice, pursuant to the Voting Rights Act, have forced a number of localities either to abandon or to modify the practice of electing governing boards at-large. In Virginia, for example, Justice Department intervention led to the conversion from at-large to ward elections for city councils in Richmond and Petersburg and to the adoption of a combination ward/at-large plan (in place of an all at-large council) in Lynchburg. The thrust of legal challenges to at-large elections, whether founded on constitutional or statutory grounds, is that at-large elections invidiously dilute the voting strength of racial minorities.

The following analysis briefly reviews the historical emergence of at-large elections for local governing bodies and the continuing controversy surrounding their use. The discussion then considers the impact of at-large elections on minority representation on local governing bodies, for both the nation and Virginia. Finally, the presentation

examines the legal status of at-large elections in light of recent federal court rulings.

THE PROGRESSIVE CASE FOR AT-LARGE ELECTIONS

The Progressive movement of the early twentieth century promoted a package of reforms designed to break up urban political machines, to end the petty provincialism of ward-based city and county governments, and to establish honest and administratively effective local governing authorities. The reform package included the council-manager plan of government, nonpartisan elections held nonconcurrently with state or national elections, and at-large elections. The adoption of at-large elections, in the eyes of reformers, would eliminate a variety of evils associated with ward elections, including the style of representation according to which council members spoke for the narrow interests of their respective neighborhoods. In the minds of reformers, ward-based elections constituted the foundation of machine politics and, in addition, raised the specter of gerrymandering. At-large elections, by requiring candidates for local governing boards to run citywide (or countywide), presumably would produce representatives sensitive to the general needs of the community, rather than to the particularistic demands of wards.¹

While Progressive reformers argued for at-large elections in terms of public interest, practical political considerations also motivated their quest for the abandonment of ward elections. Historians of the period have noted that in many cities in the early 1900s, upper-class, business-led reformers regarded at-large elections as a device to reduce the influence of working class and ethnic neighborhoods that found expression through ward-based elections.

The philosophical case for at-large elections may be a formidable one, but contem-

porary criticisms continue to emphasize the class and racial bias attached to at-large elections. According to these arguments, at-large elections lead to city and county governing boards dominated by citizens from well-to-do sections of the community. At-large elections favor candidates with the monetary resources to run expensive citywide campaigns. The at-large format also advantages candidates in the political mainstream who can count on the support of local media and political slating organizations. Finally, critics assert that at-large elections diminish the political importance of racial and ethnic minorities in city politics. As a simple illustration, a racial group concentrated in several wards of a city might easily elect council members from that group under ward elections. The same group, since it constitutes only a minority of the citywide population, might go unrepresented in a city council chosen through at-large elections.

AT-LARGE ELECTIONS AND MINORITY REPRESENTATION

The argument that at-large elections diminish or "dilute" the voting strength of racial minorities has received increasing attention from scholars and, of course, underlies the litigation over at-large systems. To date, the most significant effort to assess the impact of at-large elections on minority representation is Albert K. Karnig's analysis of black representation on councils in 139 American cities with populations in excess of 25,000 and minimum 15 percent black populations.² For each city, Karnig computed the ratio between the black percentage of seats on the council and the black percentage of the population. (If blacks were represented on the council in proportion to their percentage of the population, the ratio would be 1.000.) Karnig then compared the ratios for cities using at-large elections, cities

¹For a concise comparison of at-large and ward plans, see William J.D. Boyd, "Local Electoral Systems: Is there a Best Way?" 65 *National Civic Review* 136-40, 157 (March 1976).

²Albert K. Karnig, "Black Representation on City Councils: The Impact of District Elections and Socioeconomic Factors," 12 *Urban Affairs Quarterly* 223-42 (December 1976). The data on black representation are for 1972.

using ward elections, and cities using a mixed plan of ward and at-large elections. For the cities using ward elections, the ratio between black seats on council and population was .772; for mixed plan cities, the ratio was .546; for at-large cities, the ratio was only .457. The implication, of course, is that ward elections enhance black representation, while at-large elections reduce the likelihood of black representation. Notably, Karnig found the same pattern when he looked at northern and southern cities separately, although, in general, blacks were better represented in northern than southern cities.

The findings of the Karnig study must be interpreted with some caution, at least with regard to the effect of at-large elections on black electoral success. Aggregating data on at-large cities or ward cities tends to mask important differences in the political circumstances prevailing in particular cities. While ward elections generally do lead to greater black representation than that which emerges in at-large cities, ward elections will enhance black representation only if blacks are concentrated (and politically mobilized) in one or several wards within the city. As the Karnig study makes clear, at-large elections are not an absolute barrier to black representation; black candidates, especially in racially progressive communities, may regularly win council elections, often with the aid of white voters.

The assessment of the impact of at-large elections on minority representation, moreover, requires distinguishing among various forms of at-large elections. In the simplest version of at-large elections, all candidates compete for open seats on the council. If six seats are vacant, the six leading vote-getters are elected. In cities using the simple at-large plan, racial minorities often resort to the tactic of single-shot, or bullet, voting in order to win representation on municipal councils. (Single-shot voting refers to the practice of voting for only one candidate rather than voting, say, for six candidates for six open seats. The candidate benefiting from single-shot voting is doubly advantaged: he receives a vote while other candidates also are denied a vote.) The effectiveness of the single-shot tactic may be nullified by modification of the basic at-large format, such as a requirement that winning candidates must receive a majority of the ballots cast or a stipulation that a voter must vote for as many candidates as there are vacancies to be filled—a "full-slate requirement." A provision that candidates must run for a specific seat or "numbered post" (e.g., seat #1, seat #2) on an at-large council and staggered terms of office also will reduce the impact of single-shot voting and, thus, the likelihood of minority representation.

AT-LARGE ELECTIONS IN VIRGINIA LOCALITIES

The general examination of at-large elections thus far advanced invites more specific consideration of the use of at-large elections in Virginia's cities and counties. The analysis here is restricted to the twenty-two cities and fifty counties having nonwhite populations in excess of 15 percent in 1975.

Of the twenty-two cities considered,

TABLE 1
BLACK REPRESENTATION ON CITY COUNCILS (1977) IN
VIRGINIA CITIES WITH NONWHITE POPULATION ABOVE 15 PERCENT

	Size of City Council	Black % of Council Seats	Nonwhite % of Population (1975)	Index of Black Representation (% of Council Seats ÷ % of Population)
AT-LARGE CITIES				
Alexandria ^b	7	0.0	20.1	.000
Charlottesville ^b	5	20.0	17.1	1.170
Chesapeake ^b	9	22.2	24.5	.906
Clifton Forge ^b	5	20.0	15.7	1.274
Danville ^b	9	11.1	24.2	.459
Emporia ^{a,b}	10	10.0	40.7	.246
Franklin ^b	5	20.0	54.2	.369
Fredericksburg ^{a,b}	11	9.1	17.0	.535
Hampton ^b	7	0.0	29.9	.000
Hopewell ^b	5 ^c	0.0	16.1	.000
Lexington ^{a,b}	7	14.3	15.8	.905
Martinsville ^b	5	20.0	28.5	.702
Newport News ^b	7	14.3	28.9	.495
Norfolk ^b	7	14.3	31.8	.450
Portsmouth ^{a,b}	7	28.6	43.1	.664
Roanoke ^{a,b}	7	14.3	16.7	.856
South Boston ^{a,b}	7	14.3	35.3	.405
Williamsburg ^b	5	0.0	19.4	.000
MIXED CITIES				
Lynchburg	3 AL/4 W	14.3	22.6	.633
WARD CITIES				
Petersburg ^b	7	28.6	53.8	.532
Richmond	9	55.6	40.1	1.387
Suffolk ^b	7	14.3	47.8	.299

SOURCE: Population data for 1975 are estimates made by the Tayloe Murphy Institute, University of Virginia. Data on blacks holding seats on local governing boards are taken from *The National Roster of Black Elected Officials*, Vol. 7 (Washington, D.C.: Joint Center for Political Studies, 1977), pp. 218-20.

NOTE: The average indexes of black representation were as follows: for at-large cities, average = .524; for ward and mixed cities, average = .713; for ward cities only, average = .739.

^a The number of seats on city council includes the mayor, who is directly elected.

^b Terms of councillors are staggered.

^c Number was increased to 7 in 1978.

one of the at-large cities also mandate staggered terms for council members. Three cities (Petersburg, Richmond, Suffolk) use ward elections, while a fourth city (Lynchburg) has adopted a mixed system of ward and at-large seats. In 1977, blacks held council seats in fourteen of the eighteen at-large cities and in all of the four ward and mixed cities. For the at-large cities, the ratio of the percentage of council seats held by blacks to the percentage of nonwhite population averaged .524, while the average ratio for ward and mixed cities equaled .713 (See Table 1). The data on Virginia cities reinforce Karnig's national figures showing that ward elections are more conducive to minority representation than are at-large elections. However, as Table 1 indicates, black representation was greater in selected at-large cities than in some ward cities—a finding that suggests the significance of factors other than election format for minority representation.

The relevance of influences apart from the type of election emerges from a comparison of black representation in Virginia at-large cities with black representation on boards of supervisors in Virginia counties with more than 15 percent nonwhite populations. The ratio between black representation on these boards, almost all of which are elected by

in 1977, as opposed to .524 for at-large cities. A reasonable inference is that blacks in many counties are not sufficiently concentrated or mobilized to be able to capitalize on ward elections.

In summary, both the national data and the Virginia data on the impact of at-large elections show a general (if inconsistent) relationship between at-large elections and depressed levels of minority representation on local governing boards. This relationship has attracted close scrutiny from the U.S. Department of Justice and the federal courts; therefore, the developing law regarding at-large elections deserves closer attention.

LEGAL CHALLENGES TO AT-LARGE ELECTIONS

As noted earlier, legal attacks against at-large elections fall into two categories: (1) objections to at-large elections under the Voting Rights Act of 1965, as severally amended and (2) constitutional attacks on at-large elections under the Fourteenth and Fifteenth amendments. The voting rights disputes have been more numerous and constitute a more developed area of law; thus, they are treated first.

Enacted to guarantee black citizens full rights of suffrage, the Voting Rights Act of

ally devices, (a) employing voter qualification devices such as the literacy test and (b) recording voter registration or voter turnout under 50 percent of voting age residents in November 1964. The act suspended voter qualification devices in covered jurisdictions and authorized federal examiners to oversee voter registration in covered areas. Section 5 of the act required covered jurisdictions to submit changes in voting laws to the Attorney General or to the U.S. District Court for the District of Columbia for approval. Congress extended the act in 1970 and brought under its coverage a few more jurisdictions.

Renewing the act again in 1975, Congress significantly expanded the scope of the act to assure the voting rights of language minorities (Hispanic-Americans, Indians, Asian-Americans, Alaskan natives). A triggering formula similar to the one contained in the original 1965 act subjected areas with a sizable language minority to coverage.

At present, all jurisdictions in ten states (including Virginia) and some jurisdictions in another fifteen states fall under the preclearance provisions of Section 5. Actions by the Justice Department and a series of federal court rulings have resulted in a rather extensive list of those changes in voting laws that require approval under Section 5. Among the covered changes are annexations, at-large elections, majority vote requirements for elections, numbered posts, and staggered terms.³ Any of these changes may encounter the disapproval of the Justice Department or the district court because they tend to dilute the voting strength of a racial or language minority. For example, the Justice Department denied approval to a 1968 Louisiana statute allowing local governments to utilize at-large elections in place of the ward elections formerly required by state law.

Municipal annexations in Petersburg and Richmond in 1969 encountered objections under Section 5 and touched off lengthy litigation, ultimately resolved by two important decisions of the U.S. Supreme Court. In each instance, the city council sought to annex predominantly white outlying areas. The Petersburg annexation reduced the black proportion of the city's population from 55 percent to 46 percent; annexation in Richmond decreased the black proportion from 52 percent to 42 percent. In 1973 the U.S. Supreme Court affirmed without written opinion a district court decision invalidating Petersburg's annexation unless the city converted from at-large to ward elections (*City of Petersburg v. U.S.*, 410 U.S. 962; reported below, 354 F. Supp. 1021). Two years later, the Supreme Court ruled that Richmond's annexation, when coupled with the city's recent adoption of ward elections, met the requirements of Section 5. Significantly, the Court asserted that Section 5 does not prohibit a reduction in the black proportion of the population so long as blacks are guaranteed a reasonable

opportunity to elect councillors in proportion to their political strength in the newly expanded community (*City of Richmond v. U.S.*, 422 U.S. 358).

Lynchburg's annexation of twenty-five square miles, completed in 1976, was also accompanied by a modification in the city's election system at the insistence of the Justice Department. Lynchburg opted for a mixed plan, with four councillors elected from wards and three elected at-large; the plan virtually assures that one seat will be held by a black.

Challenges to at-large elections under the Voting Rights Act are limited to jurisdictions covered by the act and, more narrowly, to those jurisdictions seeking to make changes in election procedures. In contrast, suits asserting the unconstitutionality of at-large elections can be brought against localities anywhere in the country. While legal actions have been brought against at-large elections for city commissioners in Cairo, Illinois, and for school board members in Boston, Massachusetts, virtually all significant cases involving the constitutionality of local at-large elections have developed in the Fifth Judicial Circuit. The Fifth Circuit includes the states of Alabama, Florida, Georgia, Louisiana, Mississippi, and Texas—all states covered in whole or in part by the Voting Rights Act. The Fifth Circuit has emerged as the focal point for constitutional challenges to at-large elections for two major reasons: (1) the presumption that jurisdictions subject to the Voting Rights Act may use electoral devices, including at-large elections, for discriminatory purposes since they have done so in the past; and (2) the receptiveness of the U.S. Court of Appeals for the Fifth Circuit to claims that local at-large elections, under specific circumstances, are unconstitutional.

The principal foundation for suits attacking the constitutionality of local at-large elections is *Zimmer v. McKeithen* (485 F. 2d 1297), decided by the Fifth Circuit Court of Appeals in 1973. In this case, blacks alleged that the use of at-large elections to choose police jurors (i.e., county commissioners) and school board members in a Louisiana parish constituted an impermissible dilution of black voting strength. (Blacks comprised about 59 percent of the total population of the parish, but only 46 percent of registered voters.) The court, in deciding the case, laid down standards for evaluating whether at-large elections dilute minority voting strength in violation of the Fifteenth Amendment guarantee of the right to vote and the Fourteenth Amendment requirement of equal protection. According to the Fifth Circuit Court, unconstitutional dilution may exist:

... [1] where a minority can demonstrate a lack of access to the process of slating candidates, [2] the unresponsiveness of legislators to their particularized interests, [3] a tenuous state policy underlying the preference for multi-member or at-large districting, or [4] that the existence of past discrimination in general precludes the effective participation in the election system ... [5] Such proof is enhanced by a showing

of the existence of large majority vote requirements, [and] anti-single shot voting provisions ... [Bracketed numbers have been added by author.]

Having promulgated four major criteria plus a fifth set of "enhancing" criteria, the court went on to explain that all five conditions need not exist for a litigant to establish unconstitutional dilution. Even though only three of the five standards were clearly applicable to the parish involved in the *Zimmer* case, the court declared the at-large election systems to be unconstitutional because the balance of evidence pointed to dilution.

The judicial application of the five criteria of *Zimmer* can be understood more fully by examining an instance in which all five conditions of dilution were determined to exist. Applying the *Zimmer* criteria, the U.S. District Court for the Middle District, Georgia, found the at-large election plan for city commissioners in Albany, Georgia, unconstitutionally dilutive (*Paige v. Gray*, 437 F. Supp. 137, decided in 1977). While blacks account for about 39 percent of Albany's population of 76,000, no blacks have been elected to the city commission in the twenty-eight year experience with at-large elections. Blacks, in the court's view, were denied access to the process of slating candidates—the first criterion—and ultimately to office. The city's practice of segregating schools and public housing and its discrimination against blacks in city employment satisfied the second criterion of unresponsiveness. The fact that the city began using at-large elections in 1947, shortly after the Supreme Court ordered an end to the white primary, suggested a discriminatory or tenuous policy underlying the at-large plan. Being under the coverage of the Voting Rights Act, the city had a long history of discrimination against black voters; thus, the fourth criterion, evidence of past discrimination, was met. Finally, with respect to enhancing criteria, Albany's at-large plan required a majority vote for election to the city commission, an addition adopted with apparently discriminatory motivation in 1959. The district court, judging the presence of unconstitutional dilution, ordered Albany to enact a plan for electing commissioners by wards.

In other successful challenges to the constitutionality of at-large elections, the dilution criteria of *Zimmer* have been less completely satisfied. The U.S. District Court for the North District, Texas, which ruled Dallas's at-large plan unconstitutional, believed that the city had been responsive to minority interests and that at-large elections rested on rational state policy. The other criteria of *Zimmer* were met, however. For instance, only two blacks had been elected to city council since 1907, even though the city's population is about one-fourth black. (*Lipscomb v. Wise*, 399 F. Supp. 782, decided in 1975; the appeal of this case to the Supreme Court is discussed below.)

While the receptiveness of the Fifth Circuit Court of Appeals to dilution cases has led to extensive litigation in the federal courts of that circuit, by no means do all legal attacks on local at-large elections

³Information on covered jurisdictions and voting changes subject to Section 5 approval is taken from Charles L. Cotrell and R. Michael Stevens, "The 1975 Voting Rights Act and San Antonio, Texas: Toward a Federal Guarantee of a Republican Form of Government," 8 *Problems* 82, 92 (Winter 1978).

succeed. The Fifth Circuit Court, for example, has rejected challenges to at-large plans in Fairfield, Alabama (*Nevett v. Sides*, 571 F. 2d 209, decided in 1978) and Amarillo, Texas (*Wilson v. Vahue*, 537 F. 2d 1142, decided in 1976).

Cases involving attacks on local at-large elections have arisen in the First, Seventh, and Eighth circuits, but to date only the Fifth Circuit has provided instances of successful challenges built on the principles of *Zimmer*. However, the U.S. Supreme Court has never voiced its approval of the *Zimmer* criteria, and the legal status of current dilution cases is uncertain. *Zimmer* relied upon the Supreme Court's ruling in *White v. Regester* (412 U.S. 755), a 1973 case dealing with state legislative districts and not with elections for city and county offices. While appeal of the *Zimmer* case did reach the Supreme Court in 1976, the Court sustained the Fifth Circuit's ruling on grounds unrelated to the dilution question raised under the Fourteenth and Fifteenth amendments (*East Carol Parish School Board v. Marshall*, 424 U.S. 636). In 1978, the Dallas, Texas, case noted earlier went to the Supreme Court (*Wise v. Lipscomb*, no. 77-529, decided June 22, 1978). Deciding the case on a technicality, the Court again avoided the issue of unconstitutional dilution. Justice Rehnquist wrote in a concurring opinion by justices Stewart and Powell:

... the Court today is not presented with the question of whether the District Court erred in concluding that the form of government of the city of Dallas unconstitutionally diluted the voting power of black citizens. While this Court has found that the use of multi-member districts in a state legislative apportionment plan may be invalid if "used invidiously to cancel out or minimize the voting strength of racial groups," ... we have never had occasion to consider whether an analogue of this highly amorphous theory may be applied to municipal governments. Scheduled for hearing early in 1979 are a

pair of cases that provide the Supreme Court with an opportunity to address the question of unconstitutional dilution as applied to local at-large elections. One case is an appeal of a district court's ruling that at-large elections for school board members in Mobile County, Alabama, are unconstitutionally dilutive (*Williams v. Brown*, reported below, 428 F. Supp. 1123). The other case, mentioned at the outset of this article, involves a lower court finding of dilution in at-large elections to the Mobile city commission; the remedy required Mobile to change not only its election format from at-large to ward but also its city structure from commission to mayor-council (*City of Mobile v. Bolden*, reported below, 571 F. 2d 238). Both the city and county of Mobile are roughly one-third black by population. Opinions issued in district and appellate courts pointed to the evidence that no black had been elected to the city commission or county school board, that both the city and the school board had practiced discrimination in employment and in the provision of services, that the city and county had a long history of voting rights infringements, and that the at-large elections employed requirements for majority vote and numbered positions.

The Supreme Court's handling of these two cases could have far-reaching effects on current and potential challenges to local at-large elections. A simple rejection of the application of the dilution concept to city and county elections would overturn the lower court rulings in the two Mobile cases and would foreclose other suits alleging dilution. Alternatively, the Court might apply the *Zimmer* criteria to local elections but refine the *Zimmer* standards to make dilution challenges either relatively easy or difficult to sustain. Whether acceptance of the *Zimmer* guidelines by the Court would pave the way for an increased number of suits against local at-large elections would depend on the specific judgment about Mobile's city and county elections. Because the two Mobile cases represent very strong instances of dilution, a ruling that at-large elections in these cases were not constitu-

tionally dilutive would cast serious doubt on the prospects of future dilution suits. On the other hand, precisely because the Mobile cases so evidently point to dilution, a ruling holding at-large elections unconstitutional in the city and county of Mobile might have little relevance to situations where dilution is more difficult to prove.

CONCLUSION

Whatever the outcome of the Mobile cases now before the Supreme Court, it is unlikely that Virginia's cities using at-large elections would encounter a rash of suits alleging dilution. Although relative to population blacks were underrepresented on all but two of the at-large city councils in 1977, black councillors sat on fourteen of eighteen at-large councils. A showing of minority underrepresentation or nonrepresentation on a governing body, according to principles set out in *White* and *Zimmer*, is not sufficient evidence to sustain unconstitutional dilution. Dilution requires a demonstration that minorities are systematically locked out of the electoral process. The success of black candidates in city elections in Virginia, to a great extent, weighs against findings of unconstitutional dilution. Nevertheless, Virginia cities will continue to operate under the strictures of Section 5 of the Voting Rights Act, and electoral changes enhancing the dilutive effects of at-large elections will meet Justice Department opposition.

Virginia cities might consider voluntary changes in local election forms which could lead to greater minority representation. The elimination of staggered terms of office might raise the productivity of single-shot voting in at-large cities. Cities might also consider the mixed plan in use in Lynchburg.

The debate over the relative merit of ward, mixed, and at-large elections has simmered for many years; recent litigation has infused the controversy with new vigor. The debate is an important one, for the quality of representation plays a fundamental role in determining the effectiveness of democracy.

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